

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|-------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Owen Godshall                    | Team:<br>Squad #16                  | CCRB Case #:<br>201610473 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 11/24/2016 12:50 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/24/2018   | Precinct:<br>49                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Tue, 12/27/2016 9:58 AM  | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 12/27/2016 9:58 AM                                                                                                                                                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. LT Kishon Hickman | 00000  | 930352 | 049 PCT |
| 2. POM Pedro Reyes   | 16408  | 958000 | 049 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. POM Giuseppe Cannova | 10490     | 956486 | 049 PCT  |

| Officer(s)            | Allegation                                                                      | Investigator Recommendation |
|-----------------------|---------------------------------------------------------------------------------|-----------------------------|
| A . POM Pedro Reyes   | Abuse: Police Officer Pedro Reyes entered and searched § 87(2)(b) in the Bronx. | A . Exonerated              |
| B . LT Kishon Hickman | Discourtesy: Lieutenant Kishon Hickman spoke discourteously to § 87(2)(b)       | B . Unsubstantiated         |

### Case Summary

On December 7, 2016, § 87(2)(b) filed this complaint with the CCRB via telephone.

§ 87(2)(b) periodically works at his brother's deli, located at § 87(2)(b) in the Bronx. On several previous occasions, Lt. Kishon Hickman, PO Pedro Reyes and PO Giuseppe Cannova of the 49<sup>th</sup> Precinct had conducted regulatory inspections at the store. § 87(2)(b) had been issued summonses and arrested for various offenses, including § 87(2)(b). § 87(2)(b) filed a CCRB complaint regarding these earlier incidents.

At approximately 12:50 a.m. on November 24, 2016, Lt. Hickman, PO Reyes and PO Cannova returned to the store. PO Reyes walked directly into the store's rear storage area (**Allegation A**). He did not speak to § 87(2)(b) or obtain permission to enter the storage area before entering it. § 87(2)(b) then told Lt. Hickman that he had filed a CCRB complaint against him regarding their earlier interactions. Lt. Hickman replied, "I don't care. I don't give a fuck. I'm here to do an inspection of your license. Show me the storage for your beer" (**Allegation B**). § 87(2)(b) escorted Lt. Hickman into the rear of the store, where liquor is stored. No issues were found with the liquor storage. When the officers returned to the storefront, however, they noticed that § 87(2)(b)'s liquor license was displayed without a frame, in violation of New York State's Alcoholic Beverage Control Law. PO Reyes issued § 87(2)(b) a summons for this infraction. The officers then left the store.

The incident was recorded on the store's security cameras. Due to technical issues, the footage could not be obtained directly. § 87(2)(b) provided two screen captures taken from the footage that shows the officers inside of the store (See Board Review #01-02: Screen Captures).

### Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one previous CCRB complaint.

- § 87(2)(b)

- Lt. Hickman has been a member of the service for fourteen years and there are seven CCRB complaints substantiated against him:

- In case #200515421, stop, search and refusal to provide name and/or shield number allegations were substantiated against him. He received Command Discipline A.
- In case #200716641, a frisk allegation was substantiated against him. He received Instructions.
- In case #201508045, discourtesy (word), discourtesy (action) and stop allegations were substantiated against him. It was recommended that he receive Command Discipline A. No NYPD penalty has been recorded.
- PO Reyes has been a member of the service for two years and there are no substantiated CCRB cases made against him. The only previous complaint against him is § 87(2)(b) s previous complaint, case #201609303.

#### **Attempts to Contact Civilians**

- § 87(2)(b) identified another employee who witnessed the incident as § 87(2)(b). He did not know § 87(2)(b) s address. He provided one telephone number for § 87(2)(b) but it was found to be a wrong number. Searches of the CTS, Lexis Nexis and CLEAR databases returned no additional contact information for § 87(2)(b).

#### **Findings and Recommendations**

##### **Identification of Subject Officers**

- § 87(2)(b) identified the officer who searched the storage area as an officer named “Reyes” who was wearing a blue uniform. § 87(2)(b) recognized this officer from several previous interactions, several of which were investigated under CCRB case #201609303. § 87(2)(b) described this officer as a light-skinned male wearing a white-shirted uniform.

§ 87(2)(b) provided a photograph of this officer standing in the entrance to the storage room (See Board Review #02: Photograph #2). The photograph shows that the officer is a dark-haired Hispanic male wearing a blue uniform. The time stamp indicates that it was taken at 12:53 a.m. on November 24, 2016.

PO Reyes confirmed that he was present during the incident, and that an officer searched the storage room at the start of the incident. He did not recall which officer conducted the search. When shown the photograph of the officer standing in the doorway, however, he stated that he is the officer seen in the photograph. § 87(2)(g)

##### **Allegation A -Discourtesy: Police Officer Pedro Reyes entered and searched § 87(2)(b) in the Bronx.**

It is undisputed that when the officers first entered § 87(2)(b), PO Reyes immediately walked to the rear of the store and examined a storage room there. PO Reyes did not speak to the store employees or obtain consent before going to the storage room. It is also undisputed that the store sells alcoholic beverages.

§ 87(2)(b) was interviewed at the CCRB on December 29, 2016 (See Board Review #06: § 87(2)(b)'s Statement). In his initial account of the incident, § 87(2)(b) made no mention of an officer searching the storage room. Later, however, he showed the photograph of PO Reyes in the storage room (See Board Review #02: Photograph #2), and stated that PO Reyes walked directly into the rear of the store without obtaining consent beforehand. § 87(2)(b) made no mention of any officer searching behind the counter of the store at any point.

§ 87(2)(b) § 87(2)(b) son § 87(2)(b) provided a telephone statement on February 3, 2017 (See Board Review #12: § 87(2)(b)'s Statement). He confirmed that several officers entered the store and spoke to § 87(2)(b). He made no mention of any officers searching the premises or entering any back rooms.

§ 87(2)(b) provided a telephone statement on January 6, 2017 (See Board Review #07: § 87(2)(b)'s Statement). § 87(2)(b) identified himself as a customer who was in the store at the time of the incident. He also stated that PO Reyes checked the back room at the start of the incident. PO Reyes then went behind the store's counter and searched there briefly. § 87(2)(b) did not see PO Reyes take any items from behind the counter.

PO Reyes and PO Cannova were interviewed at the CCRB on January 25, 2017 (See Board Review #08-09: MOS Statements). They stated that the officers went to the location to conduct a business inspection. Both officers stated that an officer entered the storage room at the start of the incident. While they did not recall which specific officer conducted this search, they stated that it was done in order to make sure that there was nobody else hiding in the store while they spoke to § 87(2)(b) in front. When shown the photograph of the officer at the storage room entrance, though, both PO Reyes and PO Cannova identified the officer as PO Reyes. Neither officer recalled any officers searching any other areas of the store, including behind the counter.

Lt. Hickman was interviewed on January 18, 2017 (See Board Review #10: Lt. Hickman's Statement). He did not have a specific recollection of this incident. He noted in his memo book that PO Reyes issued a summons to an unspecified individual (See Board Review: Lt. Hickman's Memo Book), but did not independently recall what the summons was for, or what, if any, interaction that he had with § 87(2)(b) during the incident. Lt. Hickman did not recall if he or any other officers searched or inspected any parts of § 87(2)(b) during the incident. He did not recognize the officer seen in photograph #2, and did not recognize the room pictured in it.

New York State Alcoholic Beverage Control Laws §105.23 states that all premises licensed to sell beer, liquor or wine for consumption off the premises shall be subject to inspection by the police during the hours when the premises are open for business (See Board Review #11: Legal Reference).

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

**Allegation B -Discourtesy: Lieutenant Kishon Hickman spoke discourteously to** § 87(2)(b)

§ 87(2)(b) stated that when the officers entered the store, he informed Lt. Hickman that he had filed a complaint with the CCRB regarding their previous interactions. Lt. Hickman replied, "I don't care. I don't give a fuck. I'm here to do an inspection on your license." In § 87(2)(b)'s initial complaint, he instead gave Lt. Hickman's remark as, "I don't give a fuck, just show me the fucking beer. Show me the fucking storage." § 87(2)(b) then escorted Lt. Hickman into the storage area where the store keeps its alcoholic beverages. Lt. Hickman inspected the room and found no issues. Afterwards, PO Reyes issued § 87(2)(b) a summons for § 87(2)(b).

§ 87(2)(b) confirmed that § 87(2)(b) spoke to at least one of the officers in the store. He did not, however, overhear this conversation. He did not know what specific statements any of the officers made to § 87(2)(b). § 87(2)(b) stated that Lt. Hickman asked § 87(2)(b) to inspect the contents of a trash can, rather than to let him inspect the storage room. He then instructed PO Reyes to issue § 87(2)(b) a summons for the improper display of his liquor license. Afterwards, Lt. Hickman started cursing at § 87(2)(b). § 87(2)(b) did not recall Lt. Hickman's exact words, but stated that he referred to § 87(2)(b) as a "motherfucker," and that he threatened to "shut this shit down." § 87(2)(b) interpreted Lt. Hickman's last remark to be a threat to shut down § 87(2)(b)'s store.

PO Reyes and PO Cannova both recalled § 87(2)(b) telling PO Cannova that he had filed a CCRB complaint about their previous inspections at the store. Neither recall him speaking to Lt. Hickman about his complaint. They denied that Lt. Hickman told § 87(2)(b) "I don't give a fuck," "Just show me the fucking beer," or, "Show me the fucking storage." They denied that they or any other officer used profanity towards § 87(2)(b) during the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

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CCRB Case # 201610473

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date